

26STCP00857 26STCP00857

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Case Number: 26STCP00857 Hearing Date: July 10, 2026 Dept: 731

[TENTATIVE] ORDER RE: SPECIALLY

APPEARING DEFENDANT, MARQUITA DEMARY' MOTION TO QUASH SERVICE OF SUMMONS

Relevant Background

Plaintiff Christosha McDonald ("Plaintiff"),
a resident of Texas, in pro per, sues Defendant Marquita Demary (erroneously captioned
in the initial Complaint as "Marquita Barbers") ("Defendant"), a resident of
California, in pro per, pursuant to a March 24, 2026, First Amended Complaint ("FAC")
alleging claims of (1) Defamation, (2) Intentional Infliction of Emotional
Distress ("IIED"), (3) Civil Harassment, and (4) Injunctive Relief.

The claims arise from allegations
that Defendant has engaged in a continuous and escalating pattern of online
harassment and defamation directed at Plaintiff characterized by, among other
things, Defendant publishing numerous videos and livestreams on YouTube
discussing Plaintiff by name and displaying Plaintiff's image, likeness, and
personal materials without consent, and Defendant falsely representing during a
public livestream that Plaintiff engages in prostitution.

Before the Court is Defendant's

April 1, 2026, motion to quash service of summons, which is made by way of
special appearance, attacks service of summons on the ground that "Plaintiff
intentionally and in bad faith sued a deceased individual, Marquita Barbers,
despite having documented knowledge of the correct defendant's identity."

Defendant filed supplemental

declarations in support of her motion on April 1, 3, and 16, 2026. Plaintiff

then filed an opposition in declaration form on April 24, 2026, as well as a response and objection to reply on May 19, 2026, two days before Defendant filed her reply on May 21, 2026.

On May 26, 2026, Defendant's motion came before the Court. Prior to the hearing, the Court posted a tentative ruling regarding this motion, which was not viewed by the Parties as of the time of hearing. The Court continued the motion to quash hearing to July 10, 2026.

Defendant's motion is now before the Court.

Motion to Quash

a.

Self-Representation

Self-represented litigants are held to the same standards that apply to licensed attorneys. (*Harding v. Collazo* (1986) 177 Cal.App.3d 1044, 1056; see *Lombardi v. Citizens Nat'l Trust & Sav. Bank* (1955) 137 Cal.App.2d 206, 208-209 [stating that self-represented litigants are "restricted to the same rules of evidence and procedure as is required of those qualified to practice law before our courts"].)

Here, though Plaintiff and Defendant are self-represented parties, consistent with the above authority, they are held to the same standards that apply to licensed attorneys in California.

b.

Preliminary Admonishment

Before moving on to the motion before the Court, the Court pauses to advise the Parties that, though in proper, the Parties should in the future file papers in accordance with California Rules of Court, including with rules 2.100 to 2.119, which detail the general rules for filing papers in California State courts. These rules address margin size, spacing between lines, font size, and other helpful formatting tools for papers to be filed in California state courts. (See also California Rules of

Court, rule 3.1110 – 3.1116 [format of motion papers].)

c.

Legal Standard on Motion to Quash

A defendant, on or before the last day of her time to plead or within any further time that the court for good cause may allow, may move to quash service of summons on the ground of lack of jurisdiction over her. (Code Civ. Proc., § 418.10, subd. (a); see *Greener v. Workers' Comp. Appeals Bd.* (1993) 6 Cal.4th 1028, 1036 (Greener).) For a court to have personal jurisdiction over a defendant, two elements are required: (1) there must be some basis for exercising personal jurisdiction over the defendant, i.e., defendant's consent, physical presence, domicile, or minimum contacts; and (2) service of summons must be proper. (*Ziller Elecs. Lab. GmbH v. Superior Court* (1988) 206 Cal.App.3d 1222, 1229.)

A motion to quash service of summons can be used to challenge one or both elements of personal jurisdiction. (See *ibid.*) When the defendant makes a motion to quash, the burden is on the plaintiff to prove, by a preponderance of the evidence facts justifying the exercise of jurisdiction over the defendant. (See *id.* at pp. 1232-1233 [If a defendant files a motion to quash service of summons, the plaintiff has the burden to establish both elements of personal jurisdiction]; see also *ViaView, Inc. v. Ratzlaff* (2016) 1 Cal.App.5th 198, 209-210.) Thus, a plaintiff must file an opposition to defeat a motion to quash. (See *Floveyor Internat., Ltd. v. Superior Court* (1997) 59 Cal.App.4th 789, 794 [defendant does not have to act on motion to quash until plaintiff makes prima facie showing of jurisdiction].) Further, such a motion must establish personal jurisdiction on any grounds challenged by the defendants; if the defendant alleges that there is no basis for personal jurisdiction and that service was improper, the plaintiff must establish both a basis for personal jurisdiction and proper service. (See *Ziller, supra*, 206 Cal.App.3d at p. 1229; *Summers v. McClanahan* (2006) 140 Cal.App.4th 403, 413 [plaintiff required to prove jurisdictional facts supporting personal jurisdiction over each defendant when defendant challenged jurisdiction on improper service].) The mere allegations of facts or allegations in an unverified complaint are insufficient to establish jurisdiction for these purposes. (*In re Automobile Antitrust Cases I & II* (2005) 135 Cal.App.4th 100, 110 (*In re Auto*).)

If a motion to quash is granted

because there was no basis for personal jurisdiction, the Court can dismiss the complaint without prejudice, either as a whole or as to the moving defendant if there are any remaining defendants in the action. (Code Civ. Proc., § 581, subd. (h).) Although the dismissal without prejudice is not res judicata on the merits of the action, it is res judicata on the court's jurisdictional ruling. (See *MIB, Inc. v. Superior Court* (1980) 106 Cal.App.3d 228, 234-235.)

d. Discussion

The Court finds in favor of Plaintiff.

Summarized, neither of the bases to support the quashing of service of summons—lack of personal jurisdiction and improper service (Code Civ. Proc., § 418.10, subd. (a); see *Greener, supra*, 6 Cal.4th at p. 1036)—are present Defendant's motion.

The Court turns to Defendant's arguments individually and separately explains why they do not support Defendant's requested relief.

i.

Misnaming Defendant as Basis to Quash Service of Summons

Defendant's sole basis for quashing service of summons, as appears on the notice of motion, is that Plaintiff intentionally and in bad faith naming a deceased individual, Marquita Barbers, as a defendant, despite having documented knowledge of Defendant's correct identity. (See Motion, p. 1.) However, Plaintiff has corrected the misnaming of Defendant in the operative FAC. (FAC, p. 2; cf. p. 1 [caption names remain the same].) Moreover, established case law does not support the argument that the misnaming of a defendant is a proper basis for a motion to quash. (See *Hawkins v. Pacific Coast Bldg. Products, Inc.* (2004) 124 Cal.App.4th 1497 [When a plaintiff "defectively describ[es]" a defendant, the original complaint "merely misnamed the proper defendant" rather than naming an entirely different party].)

ii.

Judicial Estoppel as Basis to Quash Service of Summons

Defendant elsewhere argues in her points and authorities that Plaintiff is engaging in forum shopping insofar as Plaintiff filed suit based on the same facts both in Texas and here in California, which supports a claim of judicial estoppel. (See Motion, p. 2.) This argument, which did not appear in the notice of motion, is only cursorily elaborated by Defendant and is moreover incorrect.

The doctrine of judicial estoppel precludes a party from taking inconsistent positions in separate proceedings where the position in the first proceeding was adopted by the court or accepted by it as true. (Jackson v. County of Los Angeles (1997) 60 Cal.App.4th 171, 181.) Here, while Defendant cites Exhibits D and D-1 attached to her declaration to show a basis for judicial estoppel, Defendant does not elaborate on why the doctrine applies to the papers presently before the Court. Separately, a review of Exhibits D and D-1 merely shows an application for ex parte relief and a denial, as filed by the plaintiff in this action, in case CC-25-06244-D before the County Court at Law No. 4 in Dallas County, Texas (the "Texas lawsuit"). Notably, however, the Texas lawsuit is between Lakenya L. Manahan dba Peyton Charles and Plaintiff in this action, Christosha Ladonnie McDonald, showing parties distinct from the parties in this action. Otherwise stated, there is no clear basis for judicial estoppel before the Court, for which reason Defendant's judicial estoppel argument fails.

To the extent that Defendant is attempting to argue that pre-existing litigation in Texas of an identical or substantially similar nature precludes litigation in this action, such an argument would be unavailing. While it is true that California courts must stay an action where a previously filed action concerning the same subject matter is pending in a California court (Advanced Bionics Corp. v. Medtronic, Inc. (2002) 29 Cal.4th 697, 707), California courts may exercise jurisdiction, including through judgment, over subject matter that is simultaneously being addressed in a federal or non-California state court. (Ibid.; see also Simmons v. Superior Court (1950) 96 Cal.App.2d 119, 123-124.)

However, to the extent that this action and the Texas lawsuit are related, Plaintiff should properly file and serve a Notice of Related Case, Los Angeles Superior Court form CM-015, reflecting necessary information related to that case. (Motion, Declaration of Marquita Demary, ¶ 5, Exs. D, D-1.)

iii.

Improper Service at Non-Designated Address as
Basis to Quash Service of Summons

In her April 1, 2026, Declaration
of Improper Service—filed separately from the moving papers—Defendant argues
that service of summons must be quashed because she was served with summons at
a “non-designated” address. This is a conflation of California law.

In California, a corporation or an
unincorporated association may designate a registered agent for service of
process. (Code Civ. Proc., §§ 416.10, subd. (a), 416.40, subds. (a), (b).)
However, no “designation of address” for persons to be served is contemplated
in the Code. Instead, per California law, a person may be served by, for
example, personal service (Code Civ. Proc., § 415.10), substituted service at
work or home (Code Civ. Proc., § 415.20), first-class mail with acknowledgment
and a return envelope, etc. (Code Civ. Proc., § 415.30), and publication (Code
Civ. Proc., § 415.50).

Accordingly, Defendant’s improper
service argument also fails.

e. Reimbursement
of Waived Fees

In her April 3 and 16, 2026,
supplemental declarations, Defendant requests “reimbursement of waived fees” as
a result of Plaintiff “willfully us[ing] incorrect names and engag[ing] in
bad-faith service tactics that have wasted public judicial resources.” The
request is meritless insofar as there was no basis for quashing service of
summons and conflates applicability of Government Code section 68630 to the
present circumstances. The request is denied, without prejudice to future
standalone filings regarding fee waivers.

f. Conclusion

Defendant’s motion is DENIED.

Defendant is ordered to give

notice.

Parties who intend to submit

on this tentative must send an email to the court at indicating intention to submit on the tentative as directed by the instructions provided on the court website at www.lacourt.org. If the department does not receive an email indicating the parties are submitting on the tentative and there are no appearances at the hearing, the motion may be placed off calendar. If a party submits on the tentative, the party's email must include the case number and must identify the party submitting on the tentative. If the parties do not submit on the tentative, they should arrange to appear remotely.